



File No.: EXP202301292

## RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

### FACTS

FIRST: On January 23, 2023, a complaint was filed with the Spanish Agency for Data Protection against Mr. A.A.A., with NIF \*\*\*NIF.1 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that they are a neighbor of the respondent and that the latter has installed a surveillance camera on the facade of their home, which, due to its location and orientation, is capable of capturing images of the complainant's home without consent.

Images of the camera's location are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 16, 2023, as evidenced by the acknowledgment of receipt in the file.

On March 15, 2023, this Agency received a written response indicating the following:

- They have two cameras, one at the entrance to the home and another at the entrance to the garage.
- They provide photographs of the captured images, which show that they are limited to the facade and a space proportional to both entrances.

THIRD: On April 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)

## LEGAL GROUNDS

I

### Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

### Processing for Surveillance Purposes

Article 22.1 and 2 of the LOPDGDD states the following:

"1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

2. Images of public roads may only be captured to the extent that it is essential for the purpose

mentioned in the previous section.

However, it will be possible to capture images of public roads to a greater extent when necessary to ensure the safety of strategic property or facilities or infrastructures related to transportation, without in any case allowing the capture of images from within a private home.”

Article 5 of the GDPR, “Principles relating to processing,” provides in paragraph 1:

“Personal data shall be: processed lawfully, fairly, and transparently in relation to the data subject (‘lawfulness, fairness, and transparency’)”

The GDPR regulates the lawfulness of processing in its Article 6, which determines in paragraph 1 under what circumstances the processing of third-party data is lawful:

“1. Processing shall be lawful only if at least one of the following conditions is met:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/4

- a) the interested party has given their consent for the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract in which the interested party is a party or for the application at their request of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation applicable to the data controller;
- d) the processing is necessary to protect vital interests of the interested party or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the interested party which require the protection of personal data, particularly when the interested party is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

### III

#### Claimed Facts

The claim concerns the installation of a video surveillance system in a dwelling located opposite the claimant's dwelling. One camera, due to its location and orientation, is capable of capturing images of the claimant's dwelling, without consent for doing so.

An analysis of the documents that make up the administrative file reveals the following points relevant to the matters at hand:

The photographs submitted by both parties demonstrate that there is a system of video cameras.

The photographs sent by the respondent verify that the images captured are limited to the façade and a space proportional to both entrances of the dwelling.

In light of the facts presented, the reality of which is evidenced in the documentation in the file, the following conclusion is reached:

In this case, given the circumstances involved, it can be stated that the data processing has been adequate and relevant to the intended purpose (data minimization principle). This takes into account the orientation of the cameras, which allows for verification that it follows the usual parameters in terms of video surveillance aimed at ensuring the safety of persons, property, or facilities.

The respondent did not need to obtain the claimant's consent to install a video surveillance system in their dwelling, as the legal basis for the data processing carried out through video surveillance does not rely on the consent of the affected parties.

Considering that the purpose of the video surveillance activity is to ensure the safety of persons, property, and facilities, it fulfills a mission of public interest. Therefore, the legal basis for the data processing carried out through the video surveillance cameras installed in the commercial premises of

the claimant community is expressly provided for in paragraph e) of Article 6.1 of the GDPR: "the processing is necessary for the performance of a task carried out in the public interest."

IV

#### Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)